

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIT delhi is storing my information and selling it to third party organisation which my approval and all the information is leaked online

Job Id. : 3f1c1f31-42ba-49b6-8aee-5930de8f1cd6/DPDP Act

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APPLICABLE SECTIONS

Section 2 (1) - Definition of Personal Data

This section defines what constitutes personal data under the Act. Given that IIIT Delhi is storing and allegedly selling your personal information, this definition is crucial to understanding whether the data in question falls under the purview of the DPDP Act, 2023.

Section 5 Consent and Purpose Limitation

This section pertains to the requirements for obtaining consent from the data principal (in this case, you) before collecting and processing personal data. It also emphasizes that personal data can only be processed for specific, legitimate purposes for which consent was given.

Section 9 Rights of Data Principals

This section enumerates the rights of individuals whose personal data is being processed, including the right to access, correct inaccuracies, erase data, and grievance redressal.

Section 10 Data Protection Impact Assessment and Data Audit

Although not directly mentioned, the obligations around data protection impact assessments and audits are critical for entities handling significant amounts of personal data, which may apply to IIIT Delhi.

Section 11 Data Fiduciary’s Obligations

This section lays down the obligations of data fiduciaries (entities that process personal data), including implementing reasonable security safeguards to protect personal data.

Section 13 Breach of Data Protection

This section addresses the consequences of a data breach, including unauthorized disclosure of personal data.

Section 15 Grievance Redressal Mechanism

This section mandates that data fiduciaries establish a grievance redressal mechanism to address complaints from data principals.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The scenario presented involves alleged unauthorized sharing of personal data collected by IIIT Delhi with third-party organizations without explicit consent and a subsequent data leak. Under the DPDP Act, 2023, IIIT Delhi, as a data fiduciary, has obligations to protect personal data and can only process it with consent and for legitimate purposes.

2 Consent: IIIT Delhi must have obtained explicit consent from you for the collection and processing of your personal data. If consent was not obtained or was obtained under false pretenses, this constitutes a violation.

3 Purpose Limitation: The Act requires that personal data be processed only for the purposes for which it was collected. Selling data to third-party organizations without your consent or for purposes not initially consented to likely violates this principle.

4 Data Protection: The unauthorized leakage of personal data online is a clear breach of data protection obligations under the Act.

✓ STRENGTHS & RIGHTS

1 **Rights of Data Principals**
You have the right to file a grievance against IIIT Delhi for alleged misuse of your personal data.

2 **Protections and Safeguards**
The DPDP Act, 2023, provides you with rights such as access to your data, correction of inaccuracies, and erasure of data.

✗ RISKS & OBLIGATIONS

1 **Liabilities and Penalties**
IIIT Delhi, as a data fiduciary, may face penalties for breaches of data protection obligations, including unauthorized data sharing and leakage.

2 **Compliance Burdens**
IIIT Delhi must demonstrate compliance with the Act, including obtaining consent, implementing security safeguards, and conducting data protection impact assessments.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLAINTS AND GRIEVANCE REDRESSAL

1. You can file a grievance with IIIT Delhi's grievance redressal mechanism or with the Data Protection Board of India established under the Act.

PENALTIES AND COMPLIANCE AUDITS

1. The Data Protection Board of India can investigate breaches and impose penalties. IIIT Delhi may be required to undergo compliance audits to ensure adherence to the Act's requirements.
 2. In conclusion, IIIT Delhi's actions, as described, likely contravene several provisions of the DPDP Act, 2023, particularly those related to consent, purpose limitation, data protection, and grievance redressal.
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